



Notification Waiver Determination

Searchlight Capital Partners – Additional interest in KORE Group Holdings Inc.

Acquisition	KONA Parent, L.P. (KONA Parent), KONA Merger Sub Co. (KONA Merger Sub), Searchlight Capital IV LP, ABRY Partners VII, LP, and ABRY Partners VII Co-Investment Fund, LP applied for a notification waiver in respect of the proposed merger of KONA Merger Sub with and into KORE Group Holdings, Inc. (KORE), with KORE surviving the merger as a wholly owned subsidiary of KONA Parent, as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition would result in: • funds managed by Searchlight Capital Partners (Searchlight) holding an interest of approximately 68.7% in and indirectly acquiring sole control of KORE, and • funds managed by Abry Partners (Abry) continuing to hold a non-controlling minority interest of approximately 21.2% in KORE.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 April 2026

Parties to the Acquisition	The acquirer, KONA Parent, was formed solely for the purpose of entering into the Acquisition. Following the Acquisition, KONA Parent would be indirectly owned by: • Searchlight (with an approximate interest of 68.7%), which manages Searchlight Capital IV LP, and is an investment firm in both private equity and debt, in sectors such as communications, media and financial services, operating in North America and Europe, and • Abry (with an approximate interest of 21.2%), which manages ABRY Partners VII, LP and ABRY Partners VII Co-Investment Fund LP, and is an investment fund focused on middle market companies in the communications, media, information and business services industries. The target, KORE, would be a wholly owned subsidiary of KONA Parent following the Acquisition. It is a supplier of Internet-of-Things (IoT) connectivity to the internet and other IoT applications and solutions based in the US. In Australia, KORE supplies these services to industries including connected health, industrial IoT, EV charging, fleet management, smart buildings and sustainability.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between the products and services supplied by KORE, and Searchlight and Abry (including their controlled portfolio companies) in Australia, and there are no material vertical relationships b. while there may be a small complementary relationship between the products and services supplied by KORE, and Searchlight and Abry (including their controlled portfolio companies), there are alternative suppliers of these products and services in Australia, and c. KORE has a small presence in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act